

Tanzania 2023 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Tanzania during the year.

Significant human rights issues included credible reports of unlawful or arbitrary killings, including extrajudicial killings; torture or cruel, inhuman, or degrading treatment or punishment by or on behalf of the government; harsh and life-threatening prison conditions; serious problems with the independence of the judiciary; political prisoners or detainees; arbitrary or unlawful interference with privacy; serious restrictions on freedom of expression and media freedom, including unjustified arrests or prosecutions of journalists, censorship, and enforcement of criminal libel laws; serious restrictions on internet freedom; substantial interference with the freedom of peaceful assembly and freedom of association, including overly restrictive laws on the organization, funding, or operations of nongovernmental organizations and civil society organizations; refoulement of refugees to a country where they would face a threat to their life or freedom or other mistreatment of refugees that would constitute a separate human rights abuse; inability of citizens to change their government peacefully through free and fair elections; serious and unreasonable restrictions on political participation; serious government corruption; extensive gender-based

violence, including domestic or intimate partner violence, sexual violence, child, early, and forced marriage, female genital mutilation/cutting, and other forms of such violence; existence and enforcement of laws criminalizing consensual same-sex sexual conduct between adults; and crimes involving violence or threats of violence targeting lesbian, gay, bisexual, transgender, queer, or intersex persons.

In some cases, the government took credible steps to investigate and prosecute officials who committed human rights abuses, but impunity in police and other security forces and civilian branches of government was common.

There were isolated reports of abuses by peacekeepers, and authorities took steps to identify and investigate officials who committed alleged abuses.

Section 1. Respect for the Integrity of the Person

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were several reports the government or its agents committed arbitrary or unlawful killings, including extrajudicial killings, most often at the hands of police or prison guards. Members of marginalized racial and ethnic communities were not disproportionately impacted or overrepresented among victims of abuse.

On October 5, local media reported police fired on citizens in Kazuramimba village in Kigoma region, resulting in the death of three citizens. The incident occurred when police intervened as a group of villagers led by a traditional healer was searching the village for witches.

On March 31, police arrested a fellow officer in Tarime, Mara region. According to a police statement, the officer allegedly shot and killed N'ondi Marwa, a motorcycle taxi (bodaboda) driver and Tarime resident.

b. Disappearance

There were no credible reports of disappearances by or on behalf of government authorities.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, and Other Related Abuses

The constitution prohibited such practices; however, the law did not reflect this constitutional restriction nor define torture. There were reports police officers, prison guards, and soldiers abused, threatened, or otherwise mistreated civilians, suspected criminals, and prisoners. These abuses often involved beatings. In June Acting Regional Police Commander Mairi Mikori confirmed Mwanza police detained one of its officers for allegedly brutally beating a student at Saint Augustine University.

According to a range of human rights and advocacy organizations, the

government evicted Maasai communities from areas in the north they had long inhabited, which violated their rights to land, livelihood, and culture. Since June 2022, authorities allegedly engaged in abusive and unlawful tactics, including beatings, shootings, sexual violence, and arbitrary arrests to forcibly evict residents from their land.

Prison and Detention Center Conditions

Prisons and prison conditions were harsh and life threatening due to gross overcrowding, physical abuse, and inadequate sanitary conditions.

Abusive Physical Conditions: Physical abuse of prisoners was common according to nongovernmental organization (NGO) members, and there were reports of mistreatment. Women prisoners reported they were subject to sexual harassment and beatings by prison authorities. Members of marginalized racial and ethnic communities were not disproportionately impacted or overrepresented among victims of abuse.

Prison staff reported a lack of electricity, inadequate lighting, and insufficient medical supplies. Prisons were unheated, but prisoners in cold regions reportedly received blankets and sweaters. Sanitation was insufficient. While some prisons provided prisoners with food, the Ministry of Home Affairs reported some prisoners were growing food for themselves. The Board of Prison Force Production Agency was responsible for ensuring prisons had sufficient food supply from their own cultivation projects. Other

prisoners, however, reported receiving no food from prison authorities and relied solely on what family members provided.

Medical care was inadequate. The most common health problems were malaria, tuberculosis, HIV and AIDS, respiratory illnesses, and diseases related to poor sanitation. Prison dispensaries offered only limited treatment, and friends and family members of prisoners generally had to provide medications or the funds to purchase them. Transportation to referral health centers and hospitals was limited. In addition, requests for medical care were often met with bureaucracy that delayed prisoners' access to health care. While doctors conducted routine checkups in the prison clinics, they did not have adequate testing equipment or medicine.

Administration: Judges and magistrates regularly inspected prisons and heard concerns from convicts and detainees. In addition, relatives of inmates made complaints to the Commission for Human Rights and Good Governance (CHRAGG), which investigated reports of abuse. The results of those investigations were not made public.

On the mainland prisoners could submit complaints to judicial authorities. The CHRAGG also served as the official ombudsperson. For the union of Tanganyika (mainland Tanzania) and Zanzibar, the Ministry of Home Affairs' Public Complaints Department, as well as a prison services public relations unit, responded to public complaints and inquiries regarding prison conditions sent to them directly or through media.

Independent Monitoring: The law prohibited members of the press from visiting prisons. Generally, access to prisoners was difficult for outside organizations, and the process for obtaining access was cumbersome.

d. Arbitrary Arrest or Detention

The constitution prohibited arbitrary arrest and detention, although regional and district commissioners had authority to detain a person for up to 48 hours without charge. This authority was reportedly used to detain persons criticizing the government.

The law allowed persons arrested or detained, regardless of whether on criminal or other grounds, the right to challenge in court the legal basis or arbitrary nature of their detention and obtain prompt release and compensation if found to have been unlawfully detained. The law, however, required detainees to file a civil case to make such a challenge, and detainees rarely made such filings.

Arrest Procedures and Treatment of Detainees

On the mainland the law required that an arrest for most crimes, other than crimes committed in the presence of an officer, be made with an arrest warrant based on sufficient evidence; however, authorities did not always comply with the law. Police often detained persons without judicial authorization. The law also required a person arrested for a crime, other

than a national security detainee, be charged before a magistrate within 24 hours of arrest, excluding weekends and holidays, but authorities failed to comply consistently with this requirement. There were reports of police detaining individuals without charge for short periods on the orders of local authorities.

The law did not allow bail for suspects in cases involving murder, treason, terrorism, drugs, armed robbery, human trafficking, money laundering, other economic crimes, and other offenses where the accused might pose a public safety risk. In some cases, courts imposed strict conditions on freedom of movement and association when they granted bail. In the primary and district courts, persons sometimes reportedly bribed officials to grant bail.

The law gave accused persons the right to contact a lawyer or talk with family members, but police often failed to inform detainees of this right. Indigent defendants and suspects charged with murder or treason could apply to the registrar of the court to request legal representation. Prompt access to counsel was often limited by the lack of lawyers in rural areas, lack of communication systems and infrastructure, and accused persons' ignorance of their rights.

e. Denial of Fair Public Trial

The constitution provided for an independent judiciary, but many

components of the judiciary remained underfunded, corrupt, inefficient (especially in the lower courts), and subject to allegations of executive influence. Judges and senior court officers were political appointees of the president, which government critics argued left them open to instruction and intimidation by the president.

Court clerks reportedly took bribes to open cases or hide or misdirect the files of those accused of crimes. Magistrates of lower courts reportedly accepted bribes on occasion to determine the outcome of cases. There were instances in which the outcomes of trials appeared predetermined by the government or where the government generally did not appear to respect judicial independence or impartiality. Authorities respected and enforced court orders.

Trial Procedures

The law provided for the right to a fair and public trial, but a weak judiciary often failed to protect this right. Trials could last for months or even years because they might start, break for an indeterminate amount of time, then resume, perhaps multiple times.

The law provided for the presumption of innocence, and the standard for conviction in criminal cases was “beyond a reasonable doubt.” Despite such provisions, executive branch entities regularly accused political parties, civil society organizations, and international organizations of breaking the law

and demanded the accused clarify or defend their innocence. Courts that held closed proceedings (for example, in cases of drug trafficking or sexual offenses involving juveniles) generally were required to provide reasons for closing the proceedings. In cases involving terrorism, the law stated everyone, except the interested parties, could be excluded from court proceedings, and witnesses could be heard under special arrangements for their protection.

In Zanzibar the government sometimes provided public defenders in manslaughter cases. Authorities did not always allow detainees sufficient time to prepare their defense, and access to adequate facilities was limited. Prosecutors had no disclosure obligations in criminal cases, and often the defense would not know what evidence the prosecutor would rely upon when the trial began.

Political Prisoners and Detainees

There were no new reports of political prisoners or detainees. Under orders from President Samia Suluhu Hassan, the director of public prosecutions dropped charges against various political detainees. There was an unknown number of political prisoners on the mainland and Zanzibar who remained in prison. The government threatened to charge opposition leaders with nonbailable offenses. There were no reports of the government denying access to political detainees by human rights organizations.

f. Transnational Repression

Not applicable.

g. Property Seizure and Restitution

Not applicable.

h. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The law generally prohibited such actions without a search warrant, but the government did not consistently respect these prohibitions. While only courts could issue search warrants, the law also authorized searches of persons and premises without a warrant if necessary to prevent the loss or destruction of evidence or if circumstances were serious and urgent. The law relating to terrorism permitted police officers at or above the rank of assistant superintendent or in charge of a police station to conduct searches without a warrant in certain urgent cases. It was widely believed government agents monitored the telephones and correspondences of some citizens and foreign residents. The nature and extent of this practice were unknown, but due to fear of surveillance, many civil society organizations and leaders were unwilling to speak freely over the telephone. According to Freedom House, the government reportedly acquired social media monitoring and spyware technology and admitted that it monitored

social media in previous years.

Section 2. Respect for Civil Liberties

a. Freedom of Expression, Including for Members of the Press and Other Media

The constitution provided for freedom of speech but did not explicitly provide for freedom of expression for members of the press and other media. There were criminal penalties for libel and defamation, and authorities used these laws to stifle freedom of expression. The rights of free expression were further limited through several formal (legislative, regulatory) and informal (executive, government, and police statements) actions. These included laws that gave the government the authority to shut down media outlets.

Freedom of Expression: Public criticism of the government resulted in punitive action in some cases. Authorities used the Cybercrimes Act to bring criminal charges against individuals who criticized the government on a variety of electronic media.

As of June 10, authorities arrested at least 22 persons for allegedly criticizing the National Assembly regarding its Intergovernmental Agreement (IGA) with the United Arab Emirates for Dubai Ports World (DP World) to develop the Dar es Salaam port.

On May 1, a court sentenced a resident of Geita, Dawa Juma, to six years' imprisonment and a fine of 10 million Tanzanian shillings (\$4,170) after he was found guilty of insulting President Samia on social media.

Violence and Harassment: Authorities harassed and intimidated journalists during the year.

On April 11, police arrested and later released a lawyer named Odera Odera and four journalists after they visited Msomera village in Tanga region to report on the condition of Ngorongoro residents who were relocated by the government. The journalists were from Habari Maalum, Star TV, and KTN News Kenya.

On July 22, Fortune Francis and Sunday George, two journalists from the newspaper *Mwananchi*, were assaulted while covering an opposition political rally in the Temeke area of Dar es Salaam.

Censorship or Content Restrictions for Members of the Press and Other Media, Including Online Media: Media reporting related to security matters was censored under President Samia, although tactics were less overt than in the past. Authorities required a permit for reporting on police or prison activities both on the mainland and in Zanzibar, and journalists needed special permission to cover meetings of the National Assembly or attend meetings in the Zanzibar House of Representatives. Anyone publishing information accusing a Zanzibari representative of involvement in illegal

activities was liable to a monetary fine, three years' imprisonment, or both. The government could fine and suspend newspapers without warning. Journalists and media outlets frequently self-censored to avoid government retribution.

The government of Zanzibar controlled content on the radio and television stations it owned but allowed discussions on media policy reform to take place. There were government restrictions on broadcasting in tribal languages, and broadcasts in Kiswahili or English were officially preferred.

Several media outlets shared they received calls from government officials warning them not to run reports on sensitive subjects, particularly reports on the IGA for DP World to develop Dar es Salaam port.

On April 17, Minister of Information, Communication, and Information Technology Nape Nnauye announced hundreds of social networking accounts were banned for allegedly promoting same-sex relationships, and on July 8, ruling Chama Cha Mapinduzi party expelled Ali Karume, a former diplomat, for publicly stating President of Zanzibar Hussein Mwinyi was not legally appointed to office.

As of July 25, the National Art Council banned four songs the government claimed did not adhere to Tanzanian norms and values. The banned songs were largely critical of the government regarding human rights and corruption.

Libel/Slander Laws: The law provided for arrest, prosecution, and punishment for the use of seditious, abusive, or derogatory language to describe the country's leadership. The law made defamation a criminal act. Defamation was defined as any matter likely to injure the reputation of any person by exposing them to hatred, contempt, or ridicule, or likely to damage any person in their profession or trade by an injury to their reputation. The law prohibited a person from taking any action or making any statement with the intent of insulting the religious beliefs of another person. Anyone committing such an offense could be punished with a year's imprisonment. Blasphemy laws were in effect in areas under sharia.

Internet Freedom

The government restricted access to the internet. Online material deemed "offensive, morally improper" or that "causes annoyance" was prohibited, and those charged with violating the regulations faced a substantial monetary fine or a minimum sentence of 12 months in prison. The law criminalized publication of false information, defined as "information, data, or facts presented in a picture, texts, symbol, or any other form in a computer system where such information, data, or fact is false, deceptive, misleading, or inaccurate." While the number of arrests of individuals who made critical comments on electronic media regarding the government diminished under President Samia, individuals were still publicly threatened for publishing critical remarks or opinions, even if they were factually true.

There were widespread reports of the banning of a popular social media app for audio live chats, Clubhouse, since February.

Beginning in October, the Communications Regulatory Authority required organizations and individuals to register their destination IP addresses with the government if they were using virtual private networks to anonymize their online activity.

b. Freedom of Peaceful Assembly and Association

The constitution provided for the freedoms of peaceful assembly and association, but the government generally did not respect these rights.

Despite lifting the ban on opposition political rallies, the government limited freedom of peaceful assembly for opposition political parties. For example, demonstrations were deemed to be different from political rallies, and thus not allowed. Additionally, government attacks on human rights defenders and the arrest of opposition leaders calling for peaceful, democratic protests restricted freedom of assembly and association.

Freedom of Peaceful Assembly

The government restricted freedom of peaceful assembly, including through bans decreed by authorities but not supported by law. The 2016 government ban on political parties organizing political activities and rallies outside of election periods was lifted. The government required organizers

of political rallies to obtain police permission. Police could deny permission on public safety or security grounds or if the permit seeker belonged to an unregistered organization or political party. The government and police limited the issuance of permits for public demonstrations and assemblies to opposition political parties, NGOs, and religious organizations. Authorities prohibited organization of demonstrations or rallies online. The government restricted nonpolitical gatherings deemed critical of the government.

On August 13, police arrested lawyer Andrew Mwambukusi and opposition party CHADEMA leader Mpaluka Nyangali for allegedly planning to organize a nationwide demonstration aimed at overthrowing the government. Both individuals were involved in efforts to challenge the government regarding the IGA for DP World to develop Dar es Salaam port.

Freedom of Association

The constitution provided for freedom of association, and the government generally respected this right, although organizations regarding the interests of lesbian, gay, bisexual, transgender, queer, and intersex (LGBTQI+) persons experienced difficulty registering (see section 6, Acts of Violence, Criminalization, and Other Abuses Based on Sexual Orientation, Gender Identity or Expression, or Sex Characteristics). Thousands of NGOs and societies operated in the country. Political parties were required to register and meet membership and other requirements. Freedom of association for

workers was limited (see section 7.a.).

As of January 24, the registrar of NGOs deregistered three LGBTQI+ advocacy organizations for suggested failure to comply with laws regulating NGOs: Stay Awake Network Activity, Ignite Youth Mind of Tanzania, and Connect Community with Advocacy and Empowerment. Some stakeholders suggested these organizations were deregistered due to allegations they were promoting homosexuality. The deregistration of these organizations hindered continuity of health-focused projects and programs.

On April 2, the National Council of NGOs Executive Committee began investigating 29 civil society organizations for what they alleged to be promoting homosexuality. Former Minister for Constitution and Legal Affairs Harrison Mwakyembe made the accusations while addressing a conference in Mbeya region on March 27.

According to legal advocacy organizations, freedom of association for NGOs was jeopardized by the law, which reduced the autonomy of NGOs and provided for excessive regulation of the NGO sector. The government's registrar of NGOs, a presidential appointee, stated the process of deregistration underscored the need for NGOs to comply with the law and provide transparency and accountability in their activities. Under existing law, however, the registrar of NGOs was granted sweeping powers to suspend and deregister NGOs, leaving loopholes that could be used to obstruct political opposition and human rights NGOs (see section 3, Political

Parties and Political Participation, and section 5, Governmental Posture Towards International and Nongovernmental Monitoring and Investigation of Alleged Abuses of Human Rights).

The law made a distinction between NGOs and societies and applied different registration procedures to the two. It defined a society as any club, company, partnership, or association of 10 or more persons, regardless of its purpose, and noted specific categories of organizations not considered societies, such as political parties. The law defined NGOs to include organizations whose purpose was to promote economic, environmental, social, or cultural development; protect the environment; or lobby or advocate on topics of public interest. Societies and NGOs could not operate until authorities approved their applications.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

d. Freedom of Movement and the Right to Leave the Country

The constitution provided for freedom of internal movement, foreign travel, emigration, and repatriation, and the government generally respected these rights.

In-country Movement: Refugees were confined to camps. The government limited refugee movement and enforced its encampment policy, including the arrest of refugees caught moving outside the camps without official permission. With permits more difficult to obtain and livelihood opportunities inside the camps heavily constrained, police apprehended and arrested refugees who left the camps in search of work. Authorities usually prosecuted and sentenced these persons in local courts to six months' detention or payment of a fine.

Foreign Travel: In June the government reinstated its outright denial of exit permits for Burundian refugees to depart the country for third country resettlement. The government argued conditions in Burundi were conducive to voluntary repatriation.

e. Protection of Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Access to Asylum: The law provided for the granting of asylum or refugee status, and the government had an established system for providing protection to refugees; however, the National Eligibility Committee, which made determinations on asylum applications, reportedly had not convened

since 2018, stalling the status determination process. The asylum rejection rate was more than 70 percent. The protection environment for refugees, particularly from Burundi, was a concern. Additionally, the government did not grant UNHCR or diplomatic missions access to the southern border to assess the status of refugees entering from Mozambique. The government denied asylum seekers crossing into the country from Mozambique merited refugee status.

UNHCR intervened in cases of irregular migrants in need of international protection following their arrest by authorities in Dar es Salaam or other urban centers to ensure the migrants had access to national asylum procedures and were protected from forced return to their country of origin.

Refoulement: There were reports of asylum seekers from Mozambique who were returned without access to UNHCR assessments of the voluntariness of the returns. In addition, there were reports some long-standing Mozambican migrants living in the southern part of the country, including those with Tanzanian family members, were also expelled from the country. The government did not accept Mozambican asylum seekers fleeing violence in the northern province of Cabo Delgado into the southern part of the country. According to an agreement with the Government of Mozambique, the government returned Mozambicans who crossed into Tanzania back to unknown locations in Mozambique.

There was a significant increase in Burundians returning from Tanzania as of August, and there were reports refugees faced intimidation or pressure by Tanzanian authorities to return home. UNHCR expressed concerns regarding validating the voluntariness of the returns. Some refugees who were pressured into returning to Burundi became refugees in other countries or returned to Tanzania. The government did not allow UNHCR to reregister those who returned, preventing them from accessing humanitarian assistance or basic services.

Abuse of Refugees and Asylum Seekers: According to NGOs working in the camps, there was an increase in gender-based violence and other problems due to the loss of livelihoods, reduction of food assistance, and other stress factors. There were reports of refugees found outside the camps being detained, beaten, abused, raped, or killed by officials or citizens.

Gender-based violence against refugees continued, including allegations of violence and sexual abuse against officials who worked in or around refugee camps. Service providers identified nearly 800 survivors of gender-based violence in the Nduta and Nyarugusu camps. Some of the cases were women who were forced to repatriate to Burundi by their spouses and who returned to the camps due to lack of shelter and services in Burundi, or spousal abuse or neglect. UNHCR worked with local authorities and residents in the two refugee camps to strengthen coordination and address violence, including sexual violence, against vulnerable persons. The public

prosecutor investigated, prosecuted, and punished perpetrators of abuses in the camp, while international NGOs assisted the legal team when requested by a survivor. Local authorities and the public prosecutor handled most cases of refugee victims of crime and abuse outside the camp. Residents of the refugee camps suffered delays and limited access to courts, common problems also faced by citizens.

Freedom of Movement: Refugees apprehended farther than 2.5 miles outside their camps without permits were subject by law to sentences ranging from a fine up to a three-year prison sentence. Policy restrictions limiting refugee freedom of movement and access to livelihoods left the refugee population almost totally dependent on humanitarian assistance and vulnerable to a range of protection risks, including gender-based violence.

Employment: There were credible reports the government imposed restrictions on refugees' ability to work after their status as refugees was official.

Durable Solutions: The government focused on repatriation as the only durable solution for Burundian refugees, and it did not support naturalization or local integration as a durable solution. UNHCR assisted voluntary returns under the framework of a tripartite agreement among the Governments of Burundi and Tanzania and UNHCR, while stressing conditions inside Burundi were not yet conducive for large-scale returns

because many Burundian refugees remained in need of international protection.

Section 3. Freedom to Participate in the Political Process

The constitution provided citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage, but it allowed parliament to restrict this right if a citizen was mentally infirm, convicted of certain criminal offenses, or omitted or failed to prove or produce evidence of age, citizenship, or registration as a voter. Citizens residing outside the country were not allowed to vote.

Elections and Political Participation

Abuses or Irregularities in Recent Elections: International and local observers noted the 2020 elections were marred with numerous credible reports of irregularities, along with internet and social media outages. CHADEMA, the main opposition party, did not participate in a September by-election, citing intimidation and ballot stuffing.

Political Parties and Political Participation: The registrar of political parties had sole authority to approve registration of any political party and was responsible for enforcing regulations. A 2019 amendment expanded the registrar's powers, a move opposition members of parliament asserted

would cement one-party rule. Under the amended law, the registrar could prohibit any individual from engaging in political activities and request any information from a political party, including minutes and attendee lists from party meetings. During the 2020 elections, the political opposition faced difficulty forming a coalition due in part to the legal requirement that all minutes, areas of agreement, and strategic plans be shared with the registrar. As the government was primarily composed of one party, membership in the dominant party could confer advantages, including appointments to government jobs. President Samia maintained at least one opposition party member as a regional commissioner but did not appoint any other opposition party members to high-level government positions. The government in Zanzibar appointed two opposition party members to ministerial positions and maintained a first vice president from the opposition, primarily through its establishment of a government of national unity, which included members of the opposition.

The law required political parties to support the union between Tanganyika (mainland Tanzania) and Zanzibar; parties based on ethnic, regional, or religious affiliation were prohibited.

In August Zanzibar President Mwinyi formed the new Zanzibar Election Commission, which included two members from the opposition parties. President Mwinyi had previously formed a 12-person inter-party reconciliation committee in line with the recommendations of the national

reconciliation committee.

On September 5, the Women Media Association issued a press release claiming a political leader barred a woman member of the Zanzibar Election Commission from talking or expressing her views regarding her first appointment as a member of the election management body.

Section 4. Corruption in Government

The law provided criminal penalties for corruption by officials, but the government did not implement the law effectively. There were numerous reports of government corruption.

Corruption: Reports indicated corruption by government officials was increasing, despite President Samia's initiatives to minimize corruption. The Prevention and Combating of Corruption Bureau (PCCB) historically reported that most corruption investigations concerned government involvement in mining, land, energy, and investments.

In March the Controller and Auditor General published a report noting substantial misuse of public resources. For example, the report asserted the Director of Public Prosecutions failed to enforce collection of compensation resulting from plea-bargaining agreements amounting to 170.61 billion Tanzanian shillings (\$71.2 million). The report also noted deficiencies in the procedures for tracking confiscated assets and funds. The report

additionally found certain large-scale infrastructure projects, primarily related to the Standard Gauge Railway construction, were not in the national interest – noting the tender for the relevant contracts were not competitively bid.

NGOs reported allegations of corruption involving the Revenue Authority, local government officials, police, licensing authorities, hospital workers, and media.

On August 22, the PCCB arrested seven government officials in Katavi for alleged misappropriation of one billion Tanzanian shillings (\$417,000) in public funds by transferring the funds to vendors who had not been contracted by the Mpimbwe Local Government Authority.

On August 29, police apprehended 40 suspects following allegations of embezzling approximately 450 million Tanzanian shillings (\$188,000) in government revenue after they developed and deployed a parallel local government revenue collection scheme.

For additional information about corruption in the country, please see the Department of State's *Investment Climate Statement* for the country and the Department of State's *International Narcotics Control Strategy Report*, which includes information on financial crimes.

Section 5. Governmental Posture Towards

International and Nongovernmental Monitoring and Investigation of Alleged Abuses of Human Rights

A variety of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials were somewhat cooperative and responsive to the views of these groups. The government delayed work and residency permits for some international organizations. Some human rights NGOs complained of a negative government reaction when they challenged government practice or policy. The government in June 2022 accused NGOs of stoking tensions between authorities and residents of the Loliondo division of Ngorongoro district following the demarcation of 371,000 acres purportedly for tourism and conservation efforts (see section 1.c.). The government made similar allegations when NGOs released reports on the situation.

Government Human Rights Bodies: The union parliamentary Committee for Constitutional, Legal, and Public Administration was responsible for reporting and making recommendations regarding human rights.

The CHRAGG operated on both the mainland and Zanzibar, but its effectiveness was limited. The commission had no legal authority to prosecute cases but could make recommendations to other offices concerning remedies or call media attention to human rights abuses and

other public complaints. It also had authority to issue interim orders preventing actions in order to preserve the status quo, pending an investigation. Human rights stakeholders expressed concerns the government was censoring the human rights body, citing failure of the CHRAGG to condemn human rights abuses.

CHRAGG received complaints regarding human rights abuses from NGOs and community members about the Ngorongoro Conservation Area Authority forcefully relocating persons from the conservation area. Civil society members stated the CHRAGG did not release its report, although it conducted its investigation.

Section 6. Discrimination and Societal Abuses

Women

Rape and Domestic Violence: The law provided for life imprisonment for persons convicted of rape of women and men younger than age 18, including spousal rape during periods of legal separation. The law did not mention rape of men older than 18. The law stipulated persons wishing to report a rape needed to do so at a police station, where they needed to receive a release form before seeking medical help. This process contributed to medical complications, incomplete forensic evidence, and failure to report rapes. Survivors often feared cases reported to police would be made public.

The law prohibited assault but did not specifically prohibit domestic violence. Domestic violence against women remained widespread, and police rarely investigated such cases.

Authorities rarely prosecuted persons who abused women. Persons close to the survivors, such as relatives and friends, were most likely to be the perpetrators. Many defendants who appeared in court were set free because of corruption in the judicial system, lack of evidence, poor investigations, or poor evidence preservation.

There were some government efforts to combat gender-based violence. Police increased the number of gender and child desks in regions throughout the country to support survivors, address relevant crimes, and address mistrust between members of key populations and police. Their effectiveness, however, varied widely. Police validated a referral guide to improve the quality and consistency of responses to cases of gender-based violence. Despite government efforts, reports of gender-based violence increased. The Legal and Human Rights Centre (LHRC) released a statement that condemned an increase in gender-based violence within the community and called for enactment of a law to combat the problem.

On August 14, Minister of Community, Development, Gender, Women, Children, and Special Groups Dorothy Gwajima launched a call center to collect reports of gender-based violence, including domestic abuse. The call center was based in the political capital of Dodoma region but was intended

to increase the provision of services to historically underserved areas.

In prisons the government also coordinated policies, strategies, and guidelines in reference to gender matters. The government introduced gender desks within the prison department as a reporting mechanism for gender-based violence in prisons.

Female Genital Mutilation/Cutting (FGM/C): The law prohibited FGM/C from being performed on girls younger than 18, but it did not provide for protection to women 18 or older.

Prosecutions were rare. Many police officers and communities were unaware of the law, survivors were often reluctant to testify, and some witnesses feared reprisals from FGM/C supporters. Anti-FGM/C NGOs reported perpetrators were increasingly targeting children younger than 12 months to evade enforcement of the law. In 2019 the Ministry of Health reported approximately 10 percent of women underwent FGM/C, representing a decrease compared to previous years.

Other Forms of Gender-based Violence or Harassment: The law prohibited sexual harassment of women in the workplace. According to the Women's Legal Aid Center, police rarely investigated reported cases and the government rarely enforced applicable laws. Those cases that were investigated were often dropped before they got to court – in some instances by the plaintiffs due to societal pressure and in others by

prosecutors due to lack of evidence. The LHRC's 2020/2021 *Human Rights and Business Report* found the matter of sexual harassment was among the most pressing matters facing women in the business sector. Women reported experiencing sexual exploitation in order to obtain relief and privileges at work.

Discrimination: The law provided the same legal status and rights for women and men, including in employment, housing, education, and health care, and the government generally enforced the law; however, the law also recognized customary practices that often favored men.

While women faced discriminatory treatment in marriage, divorce, inheritance, and nationality; overt discrimination in education, credit, business ownership, and housing was uncommon. There were no legal restrictions on women's employment in the same occupations, tasks, and working hours as men. Nevertheless, women, especially in rural areas, faced significant employment disadvantages due to cultural, historical, and educational factors, such as cultural norms discouraging women from asserting opinions to men and from pursuing higher education.

Reproductive Rights: There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

According to the *Tanzania Demographic and Health Survey and Malaria Indicator Survey 2022, Key Indicator Report*, one in five women would like to

prevent pregnancy but lacked access to family planning. Family planning services, including access to contraceptives, were covered in the national health system. Twenty-two percent of adolescent girls between ages 15 and 19 were already mothers or were pregnant with their first child. The adolescent pregnancy rate was disproportionately higher in rural areas compared to urban areas. Adolescence was associated with a high frequency of child marriage, insufficient knowledge concerning sexually transmitted infections, and restricted access to sexual and reproductive health services. Persons with disabilities (especially adolescents) had greater unmet sexual and reproductive health needs than the general population due to lack of information and increased risk for sexual abuse and rape, HIV and sexually transmitted infections, and stigma.

Access to sexual and reproductive health services was hindered by communication and environmental barriers, physical inaccessibility, and negative interaction with service providers, including lack of confidentiality, mistreatment and disrespect, and inadequacy of service delivery.

Despite government efforts to improve the availability and quality of postabortion services, women and girls who suffered complications avoided seeking treatment due to the perceived risk of being prosecuted, and many health-care providers were not aware they were legally allowed to provide treatment and that women had the right to such service.

Within the Reproductive and Child Health Unit in the Ministry of Health and

implemented by the President's Office for Regional Administration and Local Government, the government had national guidelines managing the health sector response to and the prevention of gender-based violence. Health facilities trained on sexual and gender-based violence and provided sexual and reproductive health information, as well as emergency contraceptive and prophylaxis to survivors of sexual violence, per clinical guidance.

The country saw a dramatic decrease in the maternal mortality rate, from 556 in 2015 to 194 per 100,000 births, according to the 2022 census. Eighty-five percent of pregnant women delivered with a skilled birth attendant, a marked increase from 66 percent in 2015. A recent study conducted in Lindi and Mtwara Regions in the southern part of the country found traumatic and nontraumatic postpartum hemorrhage was the most common cause of maternal deaths: 51 percent of maternal deaths occurred within 24 hours of delivery; 60 percent of those who died were ages 25 to 36; and 63 percent of those who died were lower-income rural inhabitants.

Many women had untreated obstetric fistula (a hole in the birth canal caused by obstructed labor), a situation resulting in large part from deficiencies in the health system. Women attributed fistula development to negative experiences such as disrespectful maternity care. Multiple studies reported women also perceived their fistula resulted from prolonged wait times in the primary health-care facility due to nurses' negligence and failure to make decisions to transfer them to a better prepared facility in a

timely manner. Moreover, mothers reported persistent systematic barriers and dismissive institutional norms and practice, including poor communication, denial of husbands' presence at birth, denial of mobility, denial of safe traditional practices, no respect for their preferred birth positions, and poor physical condition of facilities. Community stigma was another major factor that delayed women seeking obstetric fistula treatment. In July, President Samia launched the nationwide M-Mama program in partnership with Vodacom and the Vodafone foundation to provide maternal and neonatal health-care solutions, including an emergency transport system.

Menstrual hygiene also remained a prohibitive factor for girls' access to education, as most girls did not have access to feminine hygiene products and decided to remain home during their menstrual period. Schools did not provide comprehensive sexuality education, and students reported they did not have adequate information to prevent pregnancy. In addition, an NGO reported many girls became pregnant as a result of rape. Under the Education and Training Policy launched by the government in 2015, pregnant girls could be reinstated in schools. In 2017, President Magufuli declared girls would not be allowed to return to school after giving birth; however, in November 2021, the government announced it would allow persons who had dropped out of school, including pregnant school-age girls and adolescent mothers, to return to the formal education system. On June 28, the government announced 1,907 girls who dropped out of school due

to pregnancy or childbirth had returned to school since November 2021, representing more than 20 percent of the estimated total who had dropped out.

Systemic Racial or Ethnic Violence and Discrimination

There were isolated reports of systemic racial or ethnic violence or discrimination. There were no laws for the specific protection of racial or ethnic minorities.

Indigenous Peoples

The country did not recognize the rights of Indigenous peoples or those who self-identified as Indigenous. Indigenous persons could face forcible evictions from traditionally Indigenous lands for conservation or development efforts.

Children

Education: Girls represented approximately one-half of all children enrolled in primary school but were absent more often than boys due to household duties and lack of sanitary facilities. At the secondary level, child, early, and forced marriage and pregnancy often prevented girls from finishing school.

Child Abuse: Violence against and abuse of children were major problems. The law prohibited infringing upon the rights of the child, including causing

physical, moral, or emotional harm, as well as neglect, sexual abuse, and exploitive labor. Corporal punishment was employed in schools, and the law allowed head teachers to cane students. The National Violence against Children Survey, conducted in 2009 (the most recent data available), found almost 75 percent of children experienced physical violence prior to age 18.

Child, Early, and Forced Marriage: The law set the legal age for marriage at 18 for boys and 14 with parental consent for girls. The law made it illegal to marry a primary or secondary school student. To circumvent these laws, individuals reportedly bribed police or paid a bride price to the family of the girl to avoid prosecution. According to Human Rights Watch, girls as young as seven were married. Zanzibar had its own law on marriage, but it did not specifically address child, early, and forced marriage. The government provided secondary school-level education campaigns to prevent gender-based violence, which included information on child, early, and forced marriage.

In April police arrested Maulid Athuman because he intended to marry a girl age 15. The matchmaker and sheikh involved in the intended marriage were also arrested. The girl said she agreed to get married to avoid turmoil at home, although she wanted to continue her studies.

The Women's Legal Aid Center reported increasing patterns of early marriage within refugee camps, further complicated by laws of the child, which referred to children as younger than 18. The marriage law, however,

allowed girls to marry at 14.

Sexual Exploitation of Children: The law criminalized commercial sexual exploitation of children, including child sex trafficking, sexual exhibitions, and child pornography, but there were no reported prosecutions based on this law. The law provided that sexual intercourse with a child younger than 18 was rape unless within a legal marriage. The law was not always enforced because cases were not always reported or because girls, facing pressure, dropped charges. For example, there were accounts of statutory rapes of girls that went unreported in Zanzibar. There were unofficial reports from civil society members that the number of cases of statutory rapes in Zanzibar increased, but there were no official statistics to substantiate those claims.

On August 29, a Zanzibar government statistician said 80 percent of 168 cases of gender-based violence, child abuse, and women's abuse reported during July involved children.

Infanticide, Including Infanticide of Children with Disabilities: Infanticide continued, especially among poor rural mothers who believed themselves unable to afford to raise a child. Nationwide statistics were not available.

Antisemitism

The Jewish population was very small, and there were no reports of antisemitic incidents.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acts of Violence, Criminalization, and Other Abuses Based on Sexual Orientation, Gender Identity or Expression, or Sex Characteristics

Criminalization: Consensual same-sex sexual conduct was criminalized. The law on both the mainland and Zanzibar punished “gross indecency” by up to five years in prison or a fine. The law punished any person convicted of having “carnal knowledge of another against the order of nature or permits a man to have carnal knowledge of him against the order of nature” with a prison sentence on the mainland of 30 years to life and in Zanzibar of imprisonment up to 14 years. In Zanzibar, the law provided for imprisonment up to five years or a fine for “acts of lesbianism.” These laws were enforced, including at least four individuals who received the maximum 30-year sentence.

Courts disproportionately enforced facially neutral laws against LGBTQI+ persons, such as charging individuals suspected of same-sex sexual conduct with loitering or prostitution. On January 20, a group of 14 LGBTQI+ persons were found guilty of illegal assembly and loitering; they were each ordered

to pay a fine of approximately 215,000 Tanzanian shillings (\$90) or serve a two-month jail sentence. The group was arrested during a raid of an LGBTQI+ community meeting in Morogoro and were originally charged with “promoting homosexuality,” which was a false charge, as the law prohibited homosexual acts but not the promotion of homosexuality.

Authorities arrested and later released at least 23 individuals under suspicion of same-sex sexual conduct. Three individuals, including one U.S. citizen, were arrested in April and threatened with invasive procedures. The three individuals were later released without undergoing examination, and charges were dropped.

LGBTQI+ persons were afraid to report violence and other crimes, including those committed by state agents, due to fear of arrest for same-sex sexual conduct. LGBTQI+ persons reported continued harassment from police and solicitation of bribes.

Violence and Harassment: Incidents of violence against LGBTQI+ persons occurred, but reporting was limited because individuals feared identification, arrest, or discrimination or violence from police, family members, or strangers. The government did not systematically track reports of violence or discrimination against LGBTQI+ persons.

On April 26, four persons were arrested in connection with the death of Kemilembe Seleman, whose body was found mutilated. Although the

investigation was not finished, social media comments linked Seleman's death to a 2017 video clip on the internet of her kissing another woman.

During the year, prominent activists were silent amid a surge in arrests of individuals suspected of same-sex sexual conduct due to fear of government and community reprisal.

Discrimination: The law did not prohibit discrimination based on sexual orientation, gender identity or expression, or sex characteristics, and it did not recognize LGBTQI+ couples or their families. Police verbally and sometimes physically harassed or intimidated persons perceived to be LGBTQI+ based on their clothing or behavior. LGBTQI+ persons faced discrimination in accessing health care (including access to information regarding HIV), housing, education, and employment. There were no known government efforts to combat such discrimination.

Availability of Legal Gender Recognition: There was no legal means for individuals to change gender identity markers on government identification documents. The inability to obtain legal identity documents that aligned with their gender expression created significant problems for transgender and nonbinary persons in employment, education, housing, and virtually all aspects of life.

Involuntary or Coercive Medical or Psychological Practices: There were reports of the use of involuntary or coercive practices in an effort to change

a person's sexual orientation or gender identity or expression, primarily through nonphysical means such as coercive talk "therapy" by medical or mental health practitioners or religious or community leaders. There were no efforts by government or medical associations to condemn such practices.

Restrictions of Freedom of Expression, Association, or Peaceful Assembly:

LGBTQI+ individuals could not freely assemble, associate, or express themselves publicly due to fear of identification, arrest, and discrimination or violence by police or family members.

NGOs reported difficulty registering organizations with explicitly LGBTQI+-focused names, often needing to use aliases or vague language. While NGOs feared their ability to operate freely and openly could be curtailed, they reported less targeting or deregistration by authorities under President Samia.

Freedom of expression was restricted by state agents. In February Minister of Education, Science, and Technology Adolf Mkenda banned 16 books from schools for "endangering the upbringing of children and young people in the country." The banned books included some related to LGBTQI+ identity and sex education, as well as several from the *Diary of a Wimpy Kid* series.

Persons with Disabilities

Persons with disabilities sometimes could not access education, health care,

and transportation on an equal basis with others. The law provided equality in status and prohibited discrimination against persons with physical, sensory, intellectual, and mental disabilities. The government, however, did not effectively enforce these provisions. Few public buildings were accessible to persons with disabilities. New public buildings, however, were built in compliance with the law to provide access. The law provided for access to information and communication in accessible formats, but not all persons with disabilities had such access.

Limits to the political participation of persons with disabilities included inaccessible polling stations, lack of accessible information, limited inclusion in political parties, failure of the National Election Commission to implement directives concerning disability, and prejudice toward persons with disabilities.

On April 16, police in Geita region arrested Elias Bakumye for allegedly killing his own child, who had a disability, claiming he failed to raise the child properly.

Other Societal Violence or Discrimination

The law prohibited discrimination against any person “known or perceived” to be HIV-positive and established medical confidentiality standards to protect persons with HIV and AIDS. Police abuses of HIV-positive persons, particularly in three key populations (persons engaged in commercial sex,

drug users, and LGBTQI+ persons), were not uncommon and included arbitrary arrest, extortion, and refusal to accept complaints from victims of crime. In the health sector, these key populations experienced denial of services, verbal harassment and abuse, and violations of confidentiality. In May in response to community complaints, police conducted a crackdown on persons engaged in commercial sex in Dar es Salaam. During the operation, there were credible reports of arbitrary arrests, in addition to prolonged detention, extortion, rape, sexual assault, and other physical violence. Similar crackdown operations were reported in the Iringa region in June.

Since 2017, the government prohibited the free distribution of lubricant as an HIV harm reduction strategy and the establishment of key population drop-in centers to offer HIV care and treatment services to marginalized populations.

Despite efforts by the government and NGOs to reduce mob violence through educational outreach and community policing, mob violence continued.

Witchcraft-related attacks and killings continued to be a problem and were largely underreported, according to Under the Same Sun, a Christian organization advocating for the rights of persons with albinism. According to the LHRC's 2022 report, there were 115 witchcraft-related killings in 2022. The majority of victims or targets of such killings were often children

or elderly women. In 2015 the government outlawed witchdoctors in an attempt to curtail killings of persons with albinism. Persons with albinism were at risk of violence, however, especially during election times, since some ritual practitioners sought body parts from persons with albinism in the belief that they could be used to bring power, wealth, and good fortune. In 2022, the LHRC documented the attack and killing of Joseph Mathias, a person with albinism, who was cut by unknown assailants, causing him to bleed to death. The incident occurred in Kwimba District Mwanza region.

Farmers and pastoralists sometimes argued over traditional animal grazing areas, and violence occurred during some disputes.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The mainland and Zanzibari governments had separate labor laws. The mainland's law provided for the right of workers to form and join independent trade unions, bargain collectively, and conduct legal strikes, except for workers in the categories of "national service" and prison guards. The law prohibited some forms of antiunion discrimination but did not require employers to reinstate workers fired for trade union activity nor prevent retribution against workers taking part in legal strikes. The law

required trade unions in the private sector to consist of more than 20 members and register with the government, while public-sector unions needed a minimum of 30 members. Five organizations were required to form a federation. Trade union affiliation with nonunion organizations could be annulled by the Labour Court if it was obtained without government approval or if the union was considered an organization whose remit was broader than employer-worker relations. A trade union or employers association needed to file for registration with the registrar of trade unions in the Ministry of Labour within six months of establishment. The law, however, did not provide for specific time limits within which the government needed to register an organization, and the registrar had the power to refuse registration on arbitrary or ambiguous grounds. The government prescribed the terms of office of trade union leaders. Failure to comply with government requirements was subject to fines, imprisonment, or both.

The law required unions to submit financial records and a membership list to the registrar annually and to obtain government approval for association with international trade unions. The registrar could apply to the Labour Court to deregister or suspend unions if there was overlap within an enterprise or if it was determined the union violated the law or endangered public security.

Collective bargaining agreements needed to be registered with the Labour

Commission. Public-service employees, except for limited exceptions, such as workers involved in “national service” and prison guards, could also engage in collective bargaining.

Employers had the right to initiate a lockout, provided they complied with certain legal requirements and procedures. For a strike to be declared legal, the law required three separate notifications of intent, a waiting period of at least 92 days, and a union vote in the presence of a Ministry of Labour official that garnered approval by at least 75 percent of the members voting. All parties to a dispute could be bound by an agreement to arbitrate, and neither party could then engage in a strike or a lockout until that process had been completed. Disputes regarding adjustments to or the terms of signed contracts needed to be addressed through arbitration and were not subject to strikes.

The law restricted the right to strike when a strike involved an “essential service” that could endanger the life and health of the population. Picketing in support of a strike or in opposition to a lawful lockout was prohibited. Workers in almost 50 percent of all service sectors were defined as “essential” (water, sanitation, electricity, health services, health laboratory services, firefighting, air traffic control, civil aviation, telecommunications, and any transport services required for these services); these employees could not strike without a preexisting agreement to maintain “minimum services.” Workers in other sectors could also be subject to this limitation as

determined by the Essential Services Committee, a tripartite committee composed of employers, workers, and government representatives with the authority to deem which services were essential. An employer could not legally terminate an employee for participating in a lawful strike or terminate an employee who acceded to the demands of an employer during a lockout.

Penalties for violations were commensurate with penalties for similar violations but not sufficient to deter violations. Disputes concerning antiunion discrimination needed to be referred to the Commission for Mediation and Arbitration, a governmental department affiliated with the Ministry of Labour. There was no public information available regarding cases of antiunion discrimination.

Ride-hailing platform Uber suspended operations in 2022 after the government published a fare guide increasing rates but resumed operations in January. Ride-hailing driver unions went on a two-day strike in late 2022 protesting high commission fees and raised concerns the government backtracked on previous regulations. In Zanzibar the law required any union with 50 or more members to be registered, a threshold few companies could meet. The law set literacy standards for trade union officers. The law provided the registrar considerable powers to restrict union registration by setting criteria for determining whether an organization's constitution protected its members' interests. The law applied to both public- and

private-sector workers and banned Zanzibari workers from joining labor unions on the mainland. The law prohibited a union's use of its funds, directly or indirectly, to pay any fines or penalties incurred by trade union officials in the discharge of their official duties. In Zanzibar both government and private-sector workers had the right to strike, but the right to strike was strictly regulated, requiring a long prior notice and compulsory mediation. In addition, workers in essential sectors could not strike, and picketing was prohibited. The law did not protect those taking part in legal strikes from retribution.

The law in Zanzibar provided for collective bargaining in the private sector. Public-sector employees had the right to bargain collectively through the Trade Union of Government and Health Employees; however, members of the police force and prison service, and high-level public officials (for example, the head of an executive agency) were barred from joining a trade union. Zanzibar's Dispute Handling Unit addressed labor disputes. In Zanzibar judges and all judicial officers, members of special departments, and employees of the House of Representatives were excluded from labor law protection. In Zanzibar the courts were the only venue in which labor disputes could be heard. Enforcement of labor law in Zanzibar was inadequate, especially on the island of Pemba. In Zanzibar managerial employees did not have the right to bargain collectively on salaries and other conditions of employment.

The government did not effectively enforce the law protecting the right to collective bargaining on the mainland or in Zanzibar. On both the mainland and in Zanzibar, private-sector employers adopted antiunion policies or tactics, although discriminatory activities by an employer against union members were illegal.

b. Prohibition of Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

c. Prohibition of Child Labor and Minimum Age for Employment

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings>.

d. Discrimination (see section 6)

e. Acceptable Conditions of Work

Wage and Hour Laws: The government established minimum wage standards in both the public and private sectors on the mainland. The minimum wage was above the government poverty line and was updated early in the year for the private sector, but in many industries it was below World Bank standards for what constituted extreme poverty. In May,

President Samia committed to also increase salaries of public sector employees, but workers expressed concern regarding delays implementing these increases. The law allowed employers to apply to the Ministry of Labour for an exemption from paying the minimum wage. The labor laws covered all workers, including foreign and migrant workers and those in the informal sector. The minimum wage on Zanzibar was above the poverty line.

The standard workweek was 45 hours, with a maximum of nine hours per day or six days per week. Any work in excess of these limits was compensated with overtime pay at one-and-a-half times the employee's regular wage. Under most circumstances it was illegal to schedule pregnant or breastfeeding women for work between 10 p.m. and 6 a.m.

The law stated employees with 12 months of employment were entitled to 28 days of paid annual leave, and it required employee compensation for national holidays. The law prohibited excessive or compulsory overtime and restricted overtime to 50 hours in a four-week period or in accordance with previously negotiated work contracts. The law required equal pay for equal work.

Human rights groups pointed out some employees believed they were pressured to work longer than normal hours due to the risk of losing their jobs. Some employment contracts required employees to work 10 hours per day in violation of labor laws and standards. Employees on the

mainland reported they were required to work until their employer told them to leave, even past normal working hours; in Mbeya and Geita workers reported being forced to work on weekends and holidays, according to a 2020/2021 large scale survey conducted by the LHRC.

Violations occurred most frequently in the hospitality, transportation (bus and truck drivers), construction, and private-security sectors, according to the LHRC survey. All employees in the survey indicated they worked overtime at some point, but only 38 percent reported receiving overtime pay.

Occupational Safety and Health: Several laws regulated occupational safety and health (OSH) standards in the workplace. According to the Trade Union Congress of Tanzania, OSH standards were appropriate for the main industries and enforcement of these standards improved, but challenges remained in the private sector. OSH standards, however, were not effectively enforced in the informal economy. The Occupational Safety and Health Authority did not employ sufficient inspectors. Most inspections were routine and planned, although inspectors had authority under the law to conduct unannounced inspections. OSH experts rarely identified unsafe conditions, including lack of protective equipment against COVID-19, in addition to responding to workers' OSH complaints. In dangerous industries such as construction, employees often worked without protective equipment such as helmets, gloves, and harnesses.

According to the 2008 Accident Notification Survey (the latest available), the sectors with the highest rates of fatal accidents were construction and building, transport, and mining and quarrying. Domestic workers suffered injuries after being abused by their employers; physical abuse of domestic workers occurred frequently. By law workers could remove themselves from situations that endangered health or safety without jeopardy to their employment, but authorities did not effectively enforce this protection.

Workers could sue an employer if their working conditions did not comply with the Ministry of Labour's health and environmental standards. Disputes were generally resolved through the Commission for Mediation and Arbitration. There were no exceptions for foreign or migrant workers.

Wage, Hour, and OSH Enforcement: Minimum wage compliance was regulated through the Labour Administration and Inspection Services Department, which worked under the Ministry of Labour and Employment. On the mainland, labor officers working in the Ministry of Labour monitored employment contracts, wages, and working time. The Division for Labour, Youth, Employment, and Persons with Disability in the Office of the Prime Minister reported there were 87 labor inspectors on the mainland. The Zanzibar labor commissioner reported 11 labor inspectors. The number of inspectors was insufficient to enforce compliance. In Zanzibar the Labour Commission had direct responsibility over labor inspection matters. On both the mainland and Zanzibar, labor officers could issue a compliance

order to require employers to comply with labor laws under penalty of fines, imprisonment of up to three days, or both. On the mainland, labor officers working in the Ministry of Labour monitored employment contracts, wages, and working time. The government did not effectively enforce minimum wage, overtime, and OSH laws. The OSH Authority did not employ sufficient inspectors. Most inspections were routine and planned, although inspectors had authority under the law to conduct unannounced inspections. In the case of a violation, inspectors could issue improvement notices with a deadline, issue a stop work order, or prohibit the use of dangerous equipment. There was no sanction or fine, however, that labor inspectors could directly apply on the mainland or in Zanzibar. Penalties for violations were not commensurate with those for similar crimes, such as fraud or negligence.

The government did not adequately enforce labor standards, particularly in the informal sector, where most workers were employed, or for part-time workers. The International Labor Organization reported 76 percent of nonagricultural workers in the country were in the informal sector. Approximately 5 percent of the working population (mostly women and girls) was employed in informal domestic work. Domestic workers were covered by some laws setting minimum wages and some terms of employment, but Ministry of Health researchers indicated domestic workers were unaware of their rights and remained vulnerable to excessive working hours, extremely low pay or no pay, and exploitative conditions.

Some informal worker associations privately arranged unregulated social protections for their members, such as rotational savings groups or schemes offering limited protection against health problems or death in some particularly hazardous professions such as transportation and construction. Although the law provided for enrollment of self-employed persons, stringent contribution conditions excluded many informal workers from joining and accessing benefits. The National Informal Sector Scheme for pension, health care, and loans served the informal sector to foster productive activities.